

growing produce of the Consolidated Fund at any period not later than the next succeeding quarter to that in which the said moneys were borrowed.

Any moneys so borrowed shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such fund is available.

Short title.

4. This Act may be cited as the Consolidated Fund Act (No. 1), 1901.

CHAPTER 2.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[29th April 1901.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of four hundred and fifty thousand, including those to be employed at the dépôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary, for the safety of the United Kingdom and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet nevertheless it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences,

to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow.

And whereas the Army Act will expire in the year one thousand nine hundred and one on the following days: 44 & 45 Vict. c. 58.

- (a.) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b.) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, on the thirty-first day of July; and
- (c.) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of December:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the Army (Annual) Act, 1901.

Short title.

2.—(1.) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament; that is to say, Army Act (44 & 45 Vict. c. 58.) to be in force for specified times.

- (a.) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one thousand nine hundred and one to the thirtieth day of April one thousand nine hundred and two, both inclusive; and
- (b.) Elsewhere in Europe, inclusive of Malta, also in the West Indies and America, from the thirty-first day of July one thousand nine hundred and one to the thirty-first day of July one thousand nine hundred and two, both inclusive; and
- (c.) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of December one thousand nine hundred and one to the thirty-first day of December one thousand nine hundred and two, both inclusive.

(2.) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3.) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the schedule to this Act. Prices in respect of billeting.

Amendment of Army Act.

4. At the end of section seventy of the Army Act the following subsection shall be inserted as a new subsection:— Amendment of 44 & 45 Vict. c. 58. s. 70, as to courts of inquiry

- “(5.) The rules as to the procedure of courts of inquiry may provide for evidence being taken on oath and may empower courts of inquiry to administer oaths for that purpose.”

Substitution
of references
to King.

5. Throughout the Army Act, references to Her Majesty the Queen shall be construed as references to His Majesty the King, and the necessary words shall be substituted accordingly.

SCHEDULE.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where hot meal furnished.	Fourpence per night.
Hot meal as specified in Part I. of the Second Schedule to the Army Act.	One shilling and three-pence halfpenny each.
Breakfast as so specified -	One penny halfpenny each.
Where no hot meal furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Fourpence per day.
Ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and nine-pence per day.
Lodging and attendance for officer -	Two shillings per night.

Note.—An officer shall pay for his food.

CHAPTER 3.

An Act to amend subsection (1) of section nine of the Purchase of Land (Ireland) Act, 1891, and subsection (2) of section forty-three of the Land Law (Ireland) Act, 1896. [2nd July 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Amendment
of
54 & 55 Vict.
c. 48. s. 9 and
59 & 60 Vict.
c. 47. s. 43 (2)
with respect
to limit of
advance.

1.—(1.) Where it appears to the Lord Lieutenant that it is expedient that the limit provided by subsection (1) of section nine of the Purchase of Land (Ireland) Act, 1891, with respect to the advances which may be made in any county should be exceeded, he may certify to that effect to the Treasury, and the Treasury may authorise advances to be made in that county, to such increased amount as may be determined by them, not exceeding fifty times the share of the county in the guarantee fund, where they are of